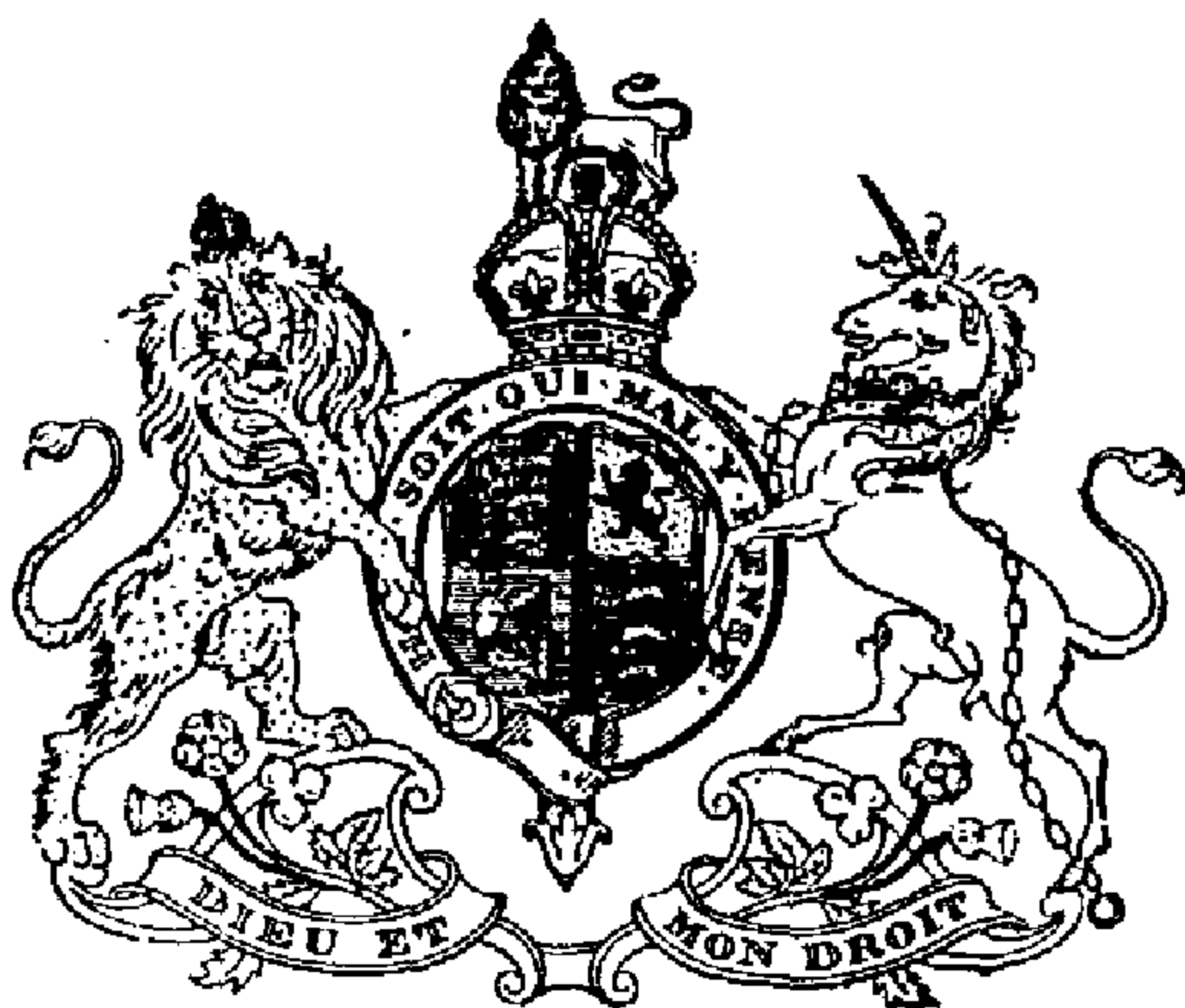




CHAPTER lvii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to St. Mungo's College. A.D. 1910.
[26th July 1910.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the St. Mungo's College Order Confirmation Act 1910. Short title.

A.D. 1910.

S C H E D U L E.

ST. MUNGO'S COLLEGE.

*Provisional Order to extend the powers of the Governors of
St. Mungo's College Glasgow to authorise the
application by the Governors of certain funds towards
the establishment and maintenance of Chairs of
Pathology or Pathological Anatomy and
Surgery in the University of Glasgow
and for other purposes.*

WHEREAS St. Mungo's College Glasgow was incorporated on the twenty-ninth day of April one thousand eight hundred and eighty-nine under the Companies Acts 1862 to 1886 and its affairs are managed by ex-officio and elected Governors the present Governors being the Honourable the Lord Provost of Glasgow the Provost of Ayr the Provost of Airdrie the Provost of Dumbarton the Provost of Paisley Bailie John Shaw Maxwell and Robert Crawford LL.D. representing the Town Council of Glasgow the Lord Dean of Guild of Glasgow the Deacon Convener of the Trades House of Glasgow the Chairman of the School Board of Glasgow Sir John Ure Primrose Baronet representing the Merchants House of Glasgow John Adam 96 Buchanan Street Glasgow representing the Trades House of Glasgow Archibald Sloan M.D. 21 Elmbank Street Glasgow representing the School Board of Glasgow James Thomson Tullis John Street Bridgeton Glasgow representing the Chamber of Commerce and Manufacturers of Glasgow Richard Brown writer Glasgow representing the Faculty of Procurators Glasgow Professor Thomas Kilpatrick Monro M.A. M.D. representing the Medical Faculty of St. Mungo's College Robert Brown writer Glasgow representing the Law Faculty of St. Mungo's College and Archibald Neilson M.D. John E. Nelson Timothy Warren John Glen Sir William Bilsland Baronet John Garroway Andrew MacDonald and James Macfarlane managers of and as representing the Royal Infirmary of Glasgow :

And whereas the memorandum of association sets forth that the persons therein named associated themselves for the

institution and maintenance in Glasgow of classes for higher education the absorption and continuance as a part of St. Mungo's College of the Glasgow Royal Infirmary Medical School the teaching and instruction of students in science literature art law and divinity and learning of every description by lectures and otherwise the establishment and maintenance of laboratories museums and libraries and the advancement and encouragement of these objects or some of them by the giving of prizes and the creation of exhibitions scholarships and fellowships: A.D. 1910.

And whereas previous to the incorporation of St. Mungo's College there had long existed in Glasgow a medical school known as the Glasgow Royal Infirmary School of Medicine at which students were prepared for the professional examinations of certain licensing bodies:

And whereas the said medical school was absorbed in the said St. Mungo's College at its incorporation:

And whereas St. Mungo's College was instituted and has since continued to be carried on as a duly equipped medical school and on an average about eighty students have attended the lectures each year:

And whereas in consequence of the development of medical education in Scotland circumstances have materially altered owing to the large endowments which have been placed at the disposal of the Scottish Universities for the benefit of students of all branches of a University curriculum and the Governors of St. Mungo's College like other similar institutions outside the said Universities find it increasingly difficult to obtain students and to continue to give adequate facilities to the students attending the College:

And whereas the Governors of St. Mungo's College having been in communication with the University Court of the University of Glasgow the managers of the Royal Infirmary of Glasgow and the trustees of the late Henry Muirhead of Bushy-hill and Longdales with a view to the better carrying out of a scheme by which medical education would be more advantageously given and the interests of the students more efficiently provided for it has been agreed that the Governors of St. Mungo's College and the said Muirhead trustees respectively should make (1) provision for the endowment or better endowment of two Chairs

A.D. 1910. in the University of Glasgow viz. one of Pathology or Pathological Anatomy and one of Obstetrics and Gynæcology and (2) augment the income or stipend of two other Chairs in the University of Glasgow viz. Medicine and Surgery transferred to or about to be transferred to or established at the Royal Infirmary of Glasgow as after mentioned:

And whereas certain funds of St. Mungo's College immediately after specified amounting to ten thousand nine hundred and eighty-eight pounds sixteen shillings and fivepence are at present held by the Governors in trust for the teaching of certain subjects in the Medical School:

And whereas of the said amount the sum of (1) five thousand pounds was received from Sir James King Baronet of Campsie and others the original and assumed testamentary trustees of the late Elizabeth Steven and Grace Steven of Bellahouston Govan usually denominated "the Bellahouston trustees" for the teaching of anatomy and (2) the sum of one thousand two hundred and fifty pounds thereof from Mrs. Notman widow of Thomas Finlayson Notman M.D. Glasgow in memory of her husband for the teaching of physiology and (3) sums of varying amounts from a great number of donors in or about the year 1889 now amounting with interest to the cumulo sum of four thousand seven hundred and thirty-eight pounds sixteen shillings and fivepence or thereby and presently administered by the Governors as the General Endowment Fund:

And whereas the Governors have recently received a further contribution of five thousand pounds to be applied towards the endowment of a Chair of Pathology or Pathological Anatomy under this Order the donor of which contribution desires to remain anonymous:

And whereas the Governors are also in receipt of annual payments amounting to five hundred pounds or thereby which will be available for the endowment or better endowment of the proposed Chairs of Surgery and Pathology and whereas the said annual payment of five hundred pounds together with the income of the said contribution of five thousand pounds and the income of the said funds of the College held in trust would enable the Governors to carry out the agreement before mentioned:

And whereas it is expedient that the Governors of the said College should be authorised (1) to make provision for the endowment within the Faculty of Medicine of the University of Glasgow of a Chair of Pathology or Pathological Anatomy and

(2) to augment the income or stipend of the Chair of Surgery transferred to or about to be transferred to and established at the Royal Infirmary of Glasgow and to apply the foresaid funds of the College for the time being or so much thereof as may be required for the purposes of the said Chairs: A.D. 1910.

And whereas it is expedient that the powers of the Governors of the said College contained in the memorandum and articles of association should be varied and their powers enlarged as in this Order provided:

And whereas the objects aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited as the *St. Mungo's College Order 1910* and shall commence and have effect on and from the date of the passing of the Act confirming the same which date is herein-after referred to as "the commencement of this Order." Short title and commencement of Order.

2. In this Order unless there be something in the subject or context repugnant to such construction the following expressions shall have the meanings herein respectively assigned to them namely:— Interpretation.

"St. Mungo's College" means St. Mungo's College Glasgow incorporated on the twenty-ninth day of April one thousand eight hundred and eighty-nine;

"The Governors" means the Governors of St. Mungo's College;

"The College Fund" means the funds of St. Mungo's College mentioned in the preamble of this Order viz. (1) the sum of ten thousand nine hundred and eighty-eight pounds sixteen shillings and fivepence and (2) the contribution of five thousand pounds and all accumulations thereof and all other sums contributed or that may be contributed to the said College or received by the Governors not subject to any special direction;

"The University" means the University of Glasgow;

"The Royal Infirmary" means the Royal Infirmary of Glasgow.

A.D. 1910.

Chair of
Pathology or
Pathological
Anatomy.

3. The Governors may notwithstanding anything contained in the memorandum and articles of association of St. Mungo's College or in the conditions under which the before-mentioned sum of ten thousand nine hundred and eighty-eight pounds sixteen shillings and fivepence is held make provision for the endowment of a Chair of Pathology or Pathological Anatomy in the University and apply the College Fund or so much thereof as they may find necessary for the purposes of the said endowment and subject to the provisions following (that is to say):—

- (A) The holder of the said Chair shall give instruction in Pathology or Pathological Anatomy at the Royal Infirmary of Glasgow as part of the medical curriculum of the University and the Chair shall be designated the St. Mungo (Notman) Chair of Pathology or Pathological Anatomy of the University or by such other distinctive title as may be agreed upon:
- (B) The Governors shall pay to the University Court so long as the Chair continues to be connected with the Royal Infirmary subject to the provisions of this Order out of the free annual income of the College Fund a yearly sum of six hundred pounds in respect of the salary of the said Chair:
- (C) The holder of the said Chair shall give instruction at the Royal Infirmary to students of the University without distinction of sex subject to any agreement or agreements made or to be made under the section of this Order the marginal note of which is "Agreements":
- (D) The Governors shall be entitled in respect of the said Chair to appoint two representatives to the Board of Curators having the right of election or presentation to the Chair.

Contribution
to salary of
Chair of
Surgery.

4. The Governors may (notwithstanding as aforesaid) on and after the establishment of a Chair of Surgery in the University pay to the University Court towards the salary of the Professor occupying the said Chair a yearly sum of four hundred pounds out of the free annual income of the College Fund subject to the provisions following (that is to say):—

- (A) The holder of the said Chair of Surgery shall give instruction at the Royal Infirmary as part of the medical curriculum of the University and the said

Chair shall be designated the St. Mungo Chair of Surgery or by such other distinctive title as may be agreed upon between the University Court and the Governors of St. Mungo's College: A.D. 1910.

- (B) The holder of the said Chair shall give instruction in systematic and clinical surgery at the Royal Infirmary to students of the University without distinction of sex subject to any agreement or agreements made or to be made under the section of this Order the marginal note of which is "Agreements":
- (c) The Governors shall be entitled in respect of the said Chair to appoint two representatives to the Board of Curators having the right of election or presentation to the Chair.

5.—(1) The obligation on the Governors for the payment of the said two annual sums of six hundred pounds and four hundred pounds respectively shall be subject to these conditions namely:—

Conditions
of contribu-
tions.

- (A) The establishment and maintenance of the said two Chairs respectively at the Royal Infirmary under and in accordance with the provisions of this Order;
- (B) The establishment and maintenance of two other Chairs in the University of Glasgow in connexion with the Royal Infirmary namely a Chair of Medicine and a Chair of Obstetrics and Gynæcology; and
- (c) The giving of instruction by the holders of the said four Chairs at the Royal Infirmary to students of the University without distinction of sex subject to any agreement or agreements made or to be made under the section of this Order the marginal note of which is "Agreements."

(2) In the event of the holders of the said four Chairs or any of them ceasing to give instruction at the Royal Infirmary to students of the University without distinction of sex then and in that event the Governors shall withdraw the said payments in respect of the said two Chairs of Pathology or Pathological Anatomy and Surgery or either of them.

6. The Governors may receive any additional donations or endowments for the general purposes of or incidental to this Order and may apply the same in such manner as they deem

Governors
may accept
additional
donations or
endowments.

A.D. 1910. — most expedient for carrying out such general purposes They may also receive donations or endowments for any special objects or having any special condition attached thereto provided such objects or conditions are not inconsistent with or calculated to impede the due carrying out of the provisions of this Order.

Agreements. 7. The Governors may enter into and carry out agreements with the University and the Royal Infirmary or either of them or with any other body or person in relation to any of the purposes of this Order and for more effectually carrying out such purposes.

Costs of Order. 8. The costs charges and expenses of and incidental to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid out of the College Fund.

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